

Regulation on Building in Islands or Lagoons Without Planning Rules

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*Simplified consolidated reading. Articles carrying the marker **[2020/R-9]** or **[2021/R-167]** were replaced or added by the amendment named; all other articles stand as originally made. Where this version and the corrected versions of the principal regulation or the amendment differ, those govern.*

Amendment History

Amendment	Instrument	Effect
1st	2020/R-9, 14 October 2020	Replaced Article 6(a) and 6(a)(1); replaced Article 8(c) and added 8(d), (e), (f); replaced Article 15; added Article 15-1; replaced Article 27(a)
2nd	2021/R-167, 14 December 2021	Added Article 6-1; replaced the opening phrase of Article 8; replaced the opening phrase of Article 9

Commencement of the 1st Amendment. It came into force on 14 October 2020, except Article 8(c), which came into force **60 days** later and does not apply to works for which construction permits were granted before that date.

Commencement of the 2nd Amendment. It came into force **30 days** after publication — 13 January 2022.

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CHAPTER ONE — Preliminary

1. Title and Authority

(a) Made under Section 95 of the Construction Act (Act No. 4/2017), to prescribe how buildings are to be built in islands or lagoons where no planning rules are in force.

(b) Cited as the **"Regulation on Building in Islands or Lagoons Without Planning Rules."**

2. Purpose

(a) Set the criteria for determining building height in islands or lagoons where no planning rules are in force.

(b) Ensure buildings in those places are safe and healthy.

(c) Set out the measures to be taken against violators, and identify who takes them.

3. Enforcement Authority

The Ministry responsible for construction policy, and the agencies it designates to issue construction permits.

4. Effective Date

60 (sixty) days after publication in the Government Gazette.

5. Definitions

"Ministry" The Government Ministry responsible for construction policy.

"Minister" The Minister of that Ministry.

"Lagoon" (*falhu*) The area from the island's shoreline to the outer edge of the reef, or the area enclosed by the reef and reef flat.

"City" An island or administrative area designated a city by the Government.

"Development control" The planning standards for the site under construction.

"Land" State (Bandaara) land and private land.

"Road" The main road, street or lane adjoining the building, or the road leading to a subdivided plot.

"Road width" Boundary to boundary across the road, not the paved width.

"Building footprint" The ground-floor built area, excluding vacant space left unbuilt on that floor.

"Building width coefficient" Building area ÷ the building's greatest external length.

1. Calculated in metres; area expressed in square metres. 2. Where the dimensions of a plot make the coefficient impossible to obtain, the Ministry determines both the coefficient and the maximum height.

"Opening" A window, vent or similar that opens. Glass blocks used only for light, and the non-opening part of a sliding unit, are excluded.

"Building Code" The standards to be observed in construction.

"Compliance Document" The documents of rules and standards issued under the Building Code.

"Ramp" A sloped surface used to ascend to or descend from a raised level.

CHAPTER TWO — Construction Practice

6. Design Under Development Control

(a) [2020/R-9] In the following cases, development control shall be obtained from the Ministry and the building designed in accordance with it:

1. [2020/R-9] buildings exceeding **30.48 m (100 ft)** in height on land allocated for residential purposes, on islands *other than* those designated cities; 2. buildings up to 30.48 m on residential land in islands designated cities; 3. land allocated by the Government for development purposes; 4. land designated an industrial zone or economic zone; 5. islands other than inhabited islands; 6. lagoons.

(b) Development control shall address building height, vacant space, parking and similar standards.

(c) Notwithstanding (a)(5), a single-storey roofed building with a gross floor area not exceeding 1,200 sq ft, on a non-residential island, need not comply with development control.

6-1. Determination of Maximum Building Height by the Council

Added by [2021/R-167].

(a) The council of an inhabited island may set the maximum height of buildings on that island, up to **30.48 m**. Where a council does so:

1. the decision shall be published in the Government Gazette, together with the date it comes into force;
2. the decision shall be given to the Ministry in writing.

A determination made by the council governs. The heights arrived at under Articles 8 and 9 are the general position and yield to it. This Article applies to island councils and city councils alike.

7. Other Construction

(a) Structures other than those in Article 6(a) shall be designed and built to the planning standards in this regulation.

(b) Where development control under Article 6(b) sets rules and standards, those shall be observed in the design.

(c) All other construction matters follow the Construction Act and its regulations.

CHAPTER THREE — Height of Buildings on Residential Land

Height is measured from **pavement level** to the top of the **roof beam, terrace slab or deck**.

Construction above that level is governed by Article 10.

Heights under this Chapter apply in a manner that does not conflict with **Article 6-1**. Where the council has determined a maximum height for the island, that determination governs. [2021/R-167]

8. Height of Buildings on Land Allocated for Residential Purposes on Islands Other Than Cities

Opening phrase replaced by [2021/R-167]; paragraphs (c) to (f) substituted and added by [2020/R-9].

8. For a building on a plot allocated for residential purposes on an island other than a city, the maximum height is determined as set out below, in a manner that does not conflict with Article 6-1.

	Building footprint	Access road or alley width	→ Maximum height
(a)	under 100 sq ft, or width coefficient under 1.829 m (6 ft)	—	→ 1 storey, maximum 6 m
(b)	under 600 sq ft	—	→ 10.5 m (34.449 ft)
(c) [2020/R-9]	600 sq ft or more, but less than 1,000 sq ft	less than 1.828 m (6 ft)	→ 12.5 m (41.010 ft)
(d) [2020/R-9]	600 sq ft or more, but less than 1,000 sq ft	at least 1.828 m (6 ft)	→ 18.5 m (60.696 ft)
(e) [2020/R-9]	1,000 sq ft or more	at least 4.572 m (15 ft)	→ 24.5 m (80.381 ft)
(f) [2020/R-9]	2,000 sq ft or more	at least 6.096 m (20 ft)	→ 30.48 m (100 ft)

9. Height of Buildings on Land Allocated for Residential Purposes in Cities

Opening phrase replaced by [2021/R-167].

9. For a building on a plot allocated for residential purposes on an island designated a city, the maximum height is determined as set out below, in a manner that does not conflict with Article 6-1.

(a) Footprint under 100 sq ft, **or** width coefficient under 1.829 m (6 ft) → not more than 1 storey.

(b) Footprint under 800 sq ft → the **lowest** of the heights given by the footprint, the width coefficient, and the access-road width.

(c) Where the width coefficient is less than seven-tenths of the square root of the building area, height is determined from the width coefficient. See **Table 1**.

$$\text{Maximum allowable height} = 1.2 + 0.3875 \times (\text{width coefficient} \div 0.7)^2$$

(d) Where the width coefficient is seven-tenths of the square root of the building area or greater, height is determined from the footprint. See **Table 2**.

$$\text{Maximum allowable height} = 1.2 + 0.3875 \times \text{building footprint}$$

(e) Height shall also be determined by the width of the access road. See **Table 3**.

Access-road width	Maximum height
(1) Under 1.219 m (4 ft)	1 storey, maximum 6 m
(2) 1.219 m (4 ft) up to 1.524 m (5 ft)	9 m (29.53 ft)
(3) Over 1.524 m (5 ft) up to 1.829 m (6 ft)	19.20 m (62.99 ft)
(4) Over 1.829 m (6 ft) up to 3.048 m (10 ft)	25.20 m (82.68 ft)
(5) Over 3.048 m (10 ft)	30.48 m (100 ft)

(f) Footprint 800 sq ft or more → the lower of the heights given by the access-road width and the width coefficient.

(g) In the case referred to in (c), the width coefficient applies as follows:

1. Coefficient 3.0 or less → not exceeding 16.5 m (54.13 ft). 2. Coefficient above 3.0 → not exceeding 30.48 m (100 ft).

(h) The maximum height by access-road width shall be determined under (e).

10. Construction Above the Roof Beam / Terrace Slab / Deck

After the maximum height is fixed under Articles 8 and 9, the following may be added. See **Schedule 1**.

- (a) Staircase and lift machine-room enclosure → not exceeding 4 m. A greater height requires the lift manufacturer's specification.
- (b) Roof over that enclosure → up to 1 m (3.280 ft).
- (c) Roof over the building → up to 1.5 m (4.921 ft) above the roof beam.
- (d) Up to two-thirds of the terrace area may be built upon; its roof and drainage may project 0.457 m (1.499 ft) into the terrace.
- (e) Construction under (d) shall not exceed the lift machine-room height or 4 m.
- (f) Antennas and satellite dishes are not counted in building height. Near an international airport, they shall be installed under the relevant aviation regulations.

11. Raising of the Ground Floor

- (a) The ground floor may be raised up to **600 mm** above the highest level of the road or yard, and the same amount added to the overall permissible height.
- (b) Where raised to provide parking beneath, the allowance is **1.5 m**, likewise added to the overall permissible height.

12. Floor-to-Ceiling Height

- (a) Residential floors → at least 2.7 m (8.859 ft) to the underside of the slab or deck.
- (b) Non-residential floors → at least 2.5 m (8.202 ft).

13. Road Width Used

- (a) On a subdivided plot → the width of the main road on which the plot is located.
- (b) On a road accessible from one end only → the width of the main road.

14. Where Height Cannot Be Determined

Where an irregular plot shape, an indeterminable maximum length, or any other reason prevents the height being fixed, a proposal shall be submitted to the Ministry for determination.

CHAPTER FOUR — Vacant Space on Residential Land

15. Allocation of Vacant Space

Article 15 was replaced in full by [2020/R-9].

- (a) Where the case is not particularly specified in paragraphs (b) to (d), a building on land allocated for residential purposes with a footprint of **1,200 sq ft** or more shall leave **10%** of the building footprint as unsheltered vacant space.
- (b)–(d) In the following cases, **5%** of the building footprint shall be left as unsheltered vacant space, and paragraph (a) does not apply in addition:

	Location	Building footprint	Building height	→ Vacant space	→ Setback
(b)	islands other than islands declared as cities	1,000 sq ft or more	between 18.5 m (60.696 ft) and 24.5 m (80.381 ft)	→ 5%, on the side facing the road	→ at least 0.75 m (2.46 ft) from the plot edge, on any two sides
(c)	islands other than islands declared as cities	2,000 sq ft or more	between 24.5 m (80.381 ft) and 30.48 m (100 ft)	→ 5%, on the side facing the road	→ at least 0.90 m (2.95 ft) from the plot edge, on any two sides

	Location	Building footprint	Building height	→ Vacant space	→ Setback
(d)	cities	600 sq ft or more, but not exceeding 1,200 sq ft	between 18.5 m (60.696 ft) and 30.48 m (100 ft)	→ 5%, anywhere within the footprint	→ none prescribed

(b), continued Balconies may project into the setback under paragraph (b) from **6 m (19.68 ft)** above ground or pavement level and above, up to **50%** of the length of the side of the building containing the setback.

(e) Wherever 5% of the building footprint is to be left as unsheltered vacant space, that open void shall be at least **0.75 m (2.46 ft)** deep.

(f) Unsheltered air vents for building ventilation may be counted towards the 5% vacant space, provided each is at least **0.9 m (2.95 ft) × 0.9 m (2.95 ft)**.

(g) No part of the building shall extend into the vacant space, except:

1. the roof drain, which may extend **0.2 m (0.656 ft)** from the building wall;
2. doors and window shutters, which may be opened to ventilate and light the building.

(h) The vacant space may be used for the parking purposes set out in Article 20(a). Where the 5% of the building footprint is to be allocated from the front of the building, only **50%** of that vacant space may be used for parking.

15-1. Rounding of a Corner Plot Abutting Two Roads

Added by [2020/R-9].

A building on a corner plot abutting two roads shall be designed with the corner rounded to a radius of **12 ft**, measured from the part of the plot adjacent to the road boundary.

CHAPTER FIVE — Building Projections on Residential Land

16. Projections Beyond the Boundary

No part of a building may project beyond the plot boundary, except:

(a) Road under 6 ft wide → the roof may project 0.2 m (0.656 ft), at more than 2.743 m (9 ft) above the road.

(b) Road 6 ft or wider → the roof and drainage may project 0.457 m (1.499 ft), at more than 2.743 m (9 ft) above the road.

17. Doors, Windows and Fanlights Opening Toward the Road

(a) None shall open beyond the boundary below 2.743 m (9 ft) above pavement level.

(b) Above 2.743 m (9 ft), they shall project no more than 0.457 m (1.499 ft).

CHAPTER SIX — Ventilation and Lighting on Residential Land

18. Ventilation and Light to Parts of the Building

Applies until the relevant Building Code compliance document is published and in force.

(a) Each part of the building shall have openings facing unbuilt vacant space totalling not less than **10%** of that part's floor area.

(b) An opening is deemed to ventilate **6 m** from the opening. Where the opening is not less than 15% of the floor area, it is deemed to ventilate **7.5 m**.

- (c) Unbuilt vacant space shall be at least **600 × 600 mm** clear. Where it adjoins another plot, it shall be at least **750 mm** from the boundary.
- (d) No opening of any kind — including fixed glass — shall be placed in a wall built on the boundary of another plot. Any opening facing an adjoining plot shall be set back at least 750 mm.
- (e) The adjoining road or alley may be used in place of vacant space. Where a plot is subdivided, no opening may be placed so as to give entry into a plot other than the one from which the yard was taken.
- (f) Notwithstanding (e), an alley created by subdivision that becomes a government alley is treated as any other adjoining road.
- (g) The lowest 2 floors (combined height not exceeding 7.5 m), if non-residential and adequately mechanically ventilated, need not have the openings and vacant space in (a), (b) and (c). The remainder of the building shall comply, and the vacant space shall be open from its base to the top. If those floors are used for residential purposes at any time, (a), (b) and (c) apply to them.
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CHAPTER SEVEN — Railings and Windows on Residential Land

19. Standards for Balconies, Stairs, Terraces and Windows

Applies until the Building Code compliance documents come into force.

- (a) Railings or walls on balconies and terraces → at least **1.2 m** (3.94 ft) high, with no gap admitting a **125 mm** sphere, and not climbable by children.
- (b) Where any part of a building adjoins the boundary of another plot → a wall or barrier of at least **2 m** (6.562 ft) shall be constructed.
- (c) Railings or walls shall also be installed on balconies and terraces not covered by (b).
- (d) Staircases → railings or walls at least **850 mm** high. In service areas children would not normally enter, they shall be safe but need not be childproof.
- (e) Windows more than 2.743 m (9 ft) above ground → sill at least **1 m** (3.281 ft) above floor level.
- (f) Notwithstanding (e), windows opening onto terraces and balconies may be lower than 1 m above floor level.
- (g) A vent in a common area more than 2.743 m (9 ft) above ground, if it admits a 125 mm sphere, shall be at least 1 m (3.281 ft) above floor level.
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CHAPTER EIGHT — Parking on Residential Land

20. Determination of Parking

- (a) Footprint over 1,200 sq ft **and** more than 5 storeys → **10%** of the footprint allocated to parking.
- (b) Parking need not be on the lowest floor, but easy vehicle access shall be planned.
- (c) The parking area may be divided, but no part may be less than 5% of the footprint. The access road or ramp is not counted within the 10%.
- (d) No parking is required for plots on roads where vehicle access is prohibited.
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CHAPTER NINE — Miscellaneous

21. Waste Storage Space

- (a) Footprint 1,000 sq ft or more → at least **1.5%** of the footprint as waste storage space.

(b) Not less than 2 × 2 ft.

22. Subdivision of Land

Where a residential plot is subdivided to include an alley, that alley shall be at least **4 ft** wide.

23. Space Adjacent to Boundaries

Where a building or part of a building is built against a boundary other than a road boundary, a vacant space at least **750 mm** wide shall be left. It need not be provided on all sides where part of the building sits on the boundary, but every such space shall remain accessible for cleaning.

24. Non-Residential Uses on Residential Land

Within 60 days of publication, the Ministry shall publish a permit application procedure for sai-hotels, restaurants, cafés, bakeries, shops, carpentry and other workshops, warehouses and other economic establishments on residential land.

25. Planning Committee

(a) The Minister shall appoint a **Planning Committee** to decide matters within the purpose of this regulation, or within its jurisdiction under the Construction Act, that are not expressly provided for.

(b) The Committee shall determine its own procedures.

(c) It operates under the Ministry that sets the planning standards.

(d) Policy decisions on matters before it are taken on the direction of the Minister.

(e) Its decisions are binding.

CHAPTER TEN — Action for Violations

26. Procedure for Violations

(a) Omitting anything required by this regulation is prohibited. Any person noticing a violation shall notify the building-permit issuing authority.

(b) Where that authority takes no action within **30 days** of notification, the matter shall be referred to the Ministry.

(c) On receiving information under (a), or on finding a violation itself, the authority shall inspect the premises for compliance.

(d) Where an inspection under (c) finds non-compliance, or the authority finds the premises may be hazardous:

1. a period under Article 27 shall be given and rectification ordered within it; 2. the notice shall state the reason and the period, and shall be dated, signed and stamped; 3. the authority shall monitor the premises until rectification is complete.

27. Action Against Violators

Each violation is dealt with separately:

(a) **[2020/R-9]** A period for rectification shall be given according to the gravity of the matter and, upon notice, a fine **not exceeding MVR 100,000** shall be imposed separately for each violation.

(b) **3%** of the fine added for each additional day the matter remains unrectified after that period.

(c) Where the fine is unpaid and the matter unrectified, referral to the Attorney General's Office for recovery of the fine and an order to rectify.

TABLES

Table 1 — City residential land: height by width coefficient

Applies where the width coefficient is less than $0.7 \times \sqrt{(\text{building area})}$. These are prescribed maxima and govern where they differ from the Article 9(c) formula.

Width coefficient (m)	Maximum height (m)
2.438	5.90
3.448	10.60
5.452	24.71
6.451	26.40
6.954	30.48

Table 2 — City residential land: height by footprint

Applies where the width coefficient is $0.7 \times \sqrt{(\text{building area})}$ or greater.

Footprint (m ²)	Maximum height (m)
9.290	4.8
18.581	8.4
46.452	19.20
65.032	26.40
75.561	30.48

Table 3 — City residential land: height by access-road width

Access-road width	Maximum height
Under 1.219 m	1 storey, maximum 6 m
1.219 m up to 1.524 m	9 m
Over 1.524 m up to 1.829 m	20 m
Over 1.829 m up to 3.048 m	25.20 m
Over 3.048 m	Up to 30.48 m

SCHEDULE 1 — Drawings

Drawing 1 — Raising of the staircase and lift machine-room enclosure, and the roof projection Elements: maximum building height · terrace railing / wall height · permissible construction height · top level of ground / yard.

Drawing 2 — Raising and roofing of the staircase and lift machine-room enclosure Elements: maximum building height · terrace railing / wall height · permissible construction height · top level of ground / yard.

Drawing 3 — Roofing at the top of the building Elements: maximum building height · permissible construction height · top level of ground / yard.

Notes on the Source

1. **Article 9(e)(3) and Table 3 disagree.** The article gives 19.20 m for the 1.524–1.829 m road band; Table 3 gives 20 m. Both are reproduced as they stand.
2. **Tables 1 and 2 are prescribed maxima**, not formula outputs. Where a formula gives a greater height, the table governs.
3. **Articles 6 and 8 were amended together.** The 1st Amendment raised the height ceiling for residential land outside cities from 18.5 m to as much as 30.48 m (Article 8(c)–(f)), and moved the development-control trigger for those islands from 18.5 m up to 30.48 m to match (Article 6(a)(1)). The two changes are one policy.
4. **Article 6(a)(2) now reads oddly against 6(a)(1).** As amended, (1) requires development control for buildings *exceeding* 30.48 m outside cities, while (2) requires it for buildings *up to* 30.48 m in cities. Paragraph (2) is unamended and is reproduced as it stands.
5. **The Article 6(a) chapeau lost its carve-out.** The original opened "Except for buildings on land allocated for residential purposes under this regulation", which sat against sub-paragraphs (1) and (2), both of which are about residential land. The amendment's replacement chapeau drops the exception.
6. **The paired heights in Article 15(b) and 15(d) are bands.** Paragraph (c) says "between" explicitly; (b) and (d) give the two figures with a comma or with no connector. The Ministry's architectural checklist for islands states each of these rules as a range, and its city case — 600 to 1,200 sq ft, height between 18.5 m and 30.48 m — matches paragraph (d) figure for figure. Paragraph (b) is a band from 18.5 m to 24.5 m, on the figures the paragraph itself prints. The checklist states that case more widely, as a height between 18.5 m and 30.48 m, but Article 8(e) caps a footprint below 2,000 sq ft at 24.5 m, so no building can reach the difference; above 2,000 sq ft, paragraph (c) governs the upper band with the stricter 0.90 m setback.
7. **Article 15(h)** refers to 5% of the building footprint, first stipulated in paragraph (d). Under paragraph (d) that 5% may sit anywhere within the footprint. Under paragraphs (b) and (c) it shall sit on the side facing the road, and it is those two paragraphs that trigger the 50% parking limit in paragraph (h).
8. **Articles 8(e) and 8(f) overlap** at footprints of 2,000 sq ft and above. Paragraph (e) carries no upper footprint limit in the original. Paragraph (f) is the more specific provision.
9. **6 ft is 1.829 m in the principal regulation and 1.828 m in the amendment.** Articles 8(a) and 9(a) use 1.829 m; Articles 8(c) and 8(d) use 1.828 m. Both round 1.8288 m. Reproduced as each instrument gives it.
10. **Article 15-1** gives no metric equivalent; the 12 ft radius stands alone in the original. For reference only, 12 ft = 3.6576 m.
11. **Article 27(a) changed from a fixed fine to a ceiling.** The original imposed a fine of MVR 100,000 per violation; as amended, the fine is one *not exceeding* MVR 100,000. Article 27(b), which adds 3% per day, is unamended and continues to run on the fine as imposed.
12. **The council has the final say on building height.** Article 6-1, added by the 2nd Amendment, lets the council of an inhabited island set a maximum height for that island, up to 30.48 m. Where it has done so, that determination governs and the heights arrived at under Articles 8 and 9 are the general position. Article 6-1 reaches island councils and city councils alike.
13. **Article 6-1 has only paragraph (a)** in the original; no further paragraphs are missing.
14. **The height datum is pavement level.** The Dhivehi ދިވެހިންނަށް means literally "from the pavement"; yard level and pavement level are the same level, and pavement level is the technical term. The 2nd Amendment wrote the datum into the opening phrases of Articles 8 and 9, where Chapter Three had already carried it.
15. **Article 6-1 sits in Chapter Two, not Chapter Three.** The 2nd Amendment added it after Article 6, so it is placed there, though it governs the height rules in Chapter Three. It is not relocated.
16. **Numbering has not been changed.** Both amendments add articles in the N-1 style — 15-1 and 6-1 — and neither renumbers the articles that follow. The 1st Amendment directed that numbering be amended in conjunction with the articles added, but its own Article 15(h) points to Article 20(a) for parking, which holds only under the existing

numbering.